

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2023CUBC013902: NUTRIEN AG SOLUTIONS, INC. vs SUPERIOR FRESH FARMS
INC., et al.**

**07/15/2026 in Department 41
Demurrer to 2nd Amended Cross Complaint**

Motions: Plaintiff/Cross-Defendant Nutrien AG Solutions, Inc.'s Demurrer to the Second Amended Cross-Complaint (*Opposed*)

The Court SUSTAINS Plaintiff/Cross-Defendant Nutrien AG Solutions, Inc.'s Demurrer based on Code of Civil Procedure section 430.10, subdivision (e).

Initially, the Court notes that insufficient facts are stated to support the first cause of action for breach of written agreement. Thus, the demurrer is sustained with leave to amend to this cause of action.

As to the remaining causes of action, breach of oral contract, negligence and professional negligence, the demurrer is sustained with leave to amend. On the face of the Second Amended Cross-Complaint the causes of action asserted appear to be barred as no proper contract is alleged. Thus, the Court sustains the demurrer with leave to amend. There is a possibility the Cross-Complainant can successfully amend. (*Goodman v. Kennedy* (1976) 18 Cal.3d. 335, 349; *Okun v. Sup.Ct. (Maple Properties)* (1981) 29 Cal.3d. 442, 460; and *Bounds v. Sup.Ct. (KMA Group)* (2014) 229 Cal.App.4th 468, 484.)

Amended Cross-Complaint to be filed within 10 days.

Counsel for Plaintiff/Cross-Defendant to give notice of this Court's ruling.